

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 03/04/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

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Law & Motion

1. 9:00 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

HEARING ON SUMMARY MOTION

FILED BY: TEXACO INC.

TENTATIVE RULING:

Before the Court is Defendant Texaco Inc.'s Motion for Summary Judgment, or in the alternative, Summary Adjudication and *Sargon* Hearing ("MSJ").

Plaintiffs' unopposed Request for Judicial Notice is **granted**. (Cal. Evid. Code § 452 (c), (h).)

Factual and Procedural Background

This case involves personal injury claims by Plaintiff Carl Prewitt related to his work as an automotive mechanic and service station operator at an Eastwood Texaco in Birmingham, Alabama from 1975-2003. (UMF 1.) While working there, Mr. Prewitt would pump gasoline for customers as well as check

how much gasoline was left in the station's storage tanks, a process referred to as tank gauging or 'sticking.' (UMF 1.) Plaintiffs contend that both activities exposed Mr. Prewitt to gasoline vapors which contain benzene, thereby exposing him to benzene. (UMF 1.)

In February 2019, Mr. Prewitt was diagnosed with the autoimmune disorder called eosinophilic fasciitis ("EF"). (UMF 4.) Mr. Prewitt was diagnosed with Aplastic Anemia ("AA") in September 2019. (UMF 5.) Plaintiffs' complaint alleges Mr. Prewitt's expose to benzene and benzene containing products (i.e. gasoline) caused his AA. (SAC ¶ 9.) The operative Second Amended Complaint includes four causes of action: (1) negligence; (2) strict products liability – design defect, failure to warn; (3) intentional/fraudulent concealment, and (4) loss of consortium.

Texaco does not address each of the above causes of action separately. Instead, Texaco argues that each of the causes of action require Plaintiffs to establish causation – *i.e.* that the exposure to gasoline (containing benzene) caused Mr. Prewitt's AA. The basis of Texaco's argument is that Plaintiffs' expert Dr. Harrison's opinion should be excluded as it is not based on sound, standard, scientific methodology. As the parties do not address the other elements of the causes of action, the Court will focus its analysis on the causation arguments raised by Texaco. The Court will also address Texaco's separate arguments relating to the design/manufacturing defect claims separately.

Standard

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit...." (California Code of Civil Procedure ("CCP") § 437c (f)(1).) A defendant "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (CCP § 437c (p)(2).)

Once the defendant "has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or defense thereto." (*Ibid.*) The plaintiff "shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (*Ibid.*)

"In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Causation on Summary Judgment

"Causation is an essential element of a tort action. Defendants are not liable unless their conduct ... was a 'legal cause' of plaintiff's injury. Generally, the burden falls on the plaintiff to establish causation.'" (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 323-24 ("*Johnson & Johnson*") quoting *Whiteley v. Philip Morris, Inc.* (2004) 117 Cal.App.4th 635, 696.)

"[I]n a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case. ... A possible cause only becomes 'probable' when, in the absence of other reasonable causal

explanations, it becomes more likely than not that the injury was a result of its action.” (*Id.* at 324 quoting *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402-03.)

Expert Testimony

Three provisions of the California Evidence Code govern the admissibility of expert opinion. First, for a person to provide expert testimony, the witness must be qualified as an expert under Evidence Code section 720. Defendant does not argue that Dr. Harrison is not qualified as an expert.

Assuming the expert is qualified to testify concerning the subject matter of the opinions proffered, sections 801 and 802 govern the admissibility of the expert’s testimony. Under those provisions, “the trial court acts as a gatekeeper to exclude expert opinion testimony that is (1) based on matter of a type on which an expert may not reasonably rely, (2) based on reasons unsupported by the material on which the expert relies, or (3) speculative.” (*Sargon Enterprises, Inc. v. University of Southern California* (2012) 55 Cal.4th 747, 771-772.) In exercising its gatekeeping function, the trial court considers whether there is too great an ‘analytical gap’ between the data relied on by the expert and the opinion offered, warranting exclusion of the expert testimony as irrelevant or too speculative. (*Id.* at 771.)

The court simply determines “whether the matter relied on can provide a reasonable basis for the opinion or whether that opinion is based on a leap of logic or conjecture. The court does not resolve scientific controversies. Rather, it conducts a ‘circumscribed inquiry’ to ‘determine whether, as a matter of logic, the studies and other information cited by experts adequately support the conclusion that the expert’s general theory or technique is valid.’” (*Id.* at 772 citation omitted.) “In short, the gatekeeper’s role ‘is to make certain that an expert, whether basing testimony upon professional studies or personal experience, employs in the courtroom the same level of intellectual rigor that characterizes the practice of an expert in the relevant field.’” (*Ibid.* quoting *Kumho Tire Co. v. Carmichael* (1999) 526 U.S. 137, 152.)

Analysis

Plaintiffs’ claims in this case arise from the assertion that Mr. Prewitt’s exposure to gasoline, which contains benzene, over the course of his career caused him to develop aplastic anemia (“AA”) later in life.

It is undisputed that gasoline contains benzene. The dispute between the parties relates to whether gasoline exposure can cause AA, and if so the level of exposure via gasoline to establish such a causation, and the amount of time between the exposure and Mr. Prewitt’s AA diagnosis.

Aplastic Anemia

Aplastic Anemia is not cancer. (UMF 6.) It is a non-malignant disease of the bone marrow failure that is characterized by a significant decrease in all three blood lineages, *i.e.* red blood cells, white blood cells, and platelets (pancytopenia). (D’s Evid. p. 26 - David Pyatt, Ph.D. analysis.) AA can be ‘*de novo*’ or acquired. (*Ibid.*) *De novo* cases result from, for example, immune dysfunction, stem cell defects, or specific genetic abnormalities. (*Ibid.*) Most AA cases are *de novo*. (*Ibid.*) Acquired AA can result from exposure to a wide variety of drugs, viruses, ionizing radiation, and/or chemicals – including benzene. (*Ibid.*) AA is a rare disease with approximately 10 cases per 1,000,000, or roughly 1,200 new cases a

year in the US. (*Id.* at p. 27.)

It has long been known that excessive exposure to benzene can damage the bone marrow and cause AA. (*Ibid.*) The historical studies mostly related to industries that used pure or extremely high concentrations of benzene, such as rotogravure printers and shoe workers. (*Ibid.*) There have been no epidemiologic studies that show an association between occupational exposure to gasoline (which contains low levels of benzene) and AA. (UMF 12.)

There is a separate disease called Acute Myeloid Leukemia (“AML”) which is a form of blood cancer. In a “fairly small percent” of cases of AML the patient had a preexisting case of AA. (Harrison Depo. at 113:19-23.) It is undisputed that Mr. Prewitt does not have AML. (UMF 9.)

Causation

A plaintiff seeking to hold a company liable because its product or a substance it produced and sold allegedly caused plaintiff to be inflicted with a disease or adverse physical condition, the plaintiff has to prove both general and specific causation. General causation means that the product or substance is capable of causing the disease or physical condition at issue. (*Johnson & Johnson*, supra, 37 Cal.App.5th at 330.) Specific causation means that the product or substance caused the disease or condition in the plaintiff. (*Id.* at 331-32.) If the plaintiff fails to provide evidence showing general causation, then one cannot “reliably conclude the toxin caused the *plaintiff’s* disease, even if other known causes were ruled out.” (*Id.* at 330-31 citations omitted.) In other words, if there is no evidence of general causation there can be no specific causation.

Texaco’s Evidence

Texaco submits the reports of two experts in support of its motion: David Pyatt, Ph.D. and Ross Levine, M.D. Dr. Pyatt is a toxicologist with 30 years of experience researching and publishing in the fields of environmental and occupational toxicology, experimental hematology, carcinogenesis and immunology. Dr. Levine is a treating physician and researcher with a focus on patients with myeloid malignancies, which includes clinical experience in assessing and treating AA patients.

Dr. Pyatt provides a detailed review of the issues in this case with numerous citations to publications that were reviewed that provide the basis for his opinions. In summary, his opinions are that (1) occupational exposure to gasoline does not cause or increase the risk of AA; (2) there is no evidence that Mr. Prewitt’s level of exposure to benzene was at a level significant enough to those shown to cause AA; and (3) there is no scientific support for the claim that Mr. Prewitt’s AA was caused by exposures that began 40+ years and ended 15+ years ago.

Dr. Levine reviewed all of Mr. Prewitt’s medical records, as well as the deposition testimony of Dr. Harrison and Dr. Pyatt. He also reviewed the relevant published literature, primarily focusing on the relationship between benzene exposure and the development of aplastic anemia and EF. Dr. Levine provides an in-depth analysis and discussion of the issues in this case and the basis for his opinions. Dr. Levine’s conclusions are that “benzene-induced genotoxicity is not the cause of Mr. Prewitt’s AA,” and that “it is medically likely that his AA was caused by immune-based disruption of his hematopoietic function, and he had multiple immune-based diseases consistent with a propensity for autoimmune based diseases including AA.” (D’s Evid. at p. 439, Levine Report at p. 5.) In other words, Mr. Prewitt’s AA is caused by an autoimmune disease and is not caused by exposure to

gasoline/benzene.

Texaco has met its initial burden to show that Plaintiffs' claims fail due to a lack of causation. As such, Texaco has shifted the burden to Plaintiffs to show that a triable issue of material facts exists. "To meet this burden, the plaintiff must produce admissible evidence." (*Borders Online v. State Bd. of Equalization* (2005) 129 Cal.App.4th 1179, 1188, citations omitted.)

Plaintiffs' Evidence

Plaintiffs' theory of general causation is that the benzene contained in the gasoline Mr. Prewitt was exposed to can cause AA.

Benzene exposure versus gasoline exposure

There have been no epidemiological studies that show an association between occupational exposure to gasoline and AA. (UMF 12.) Plaintiffs 'deny' this assertion without citing any studies that show an association between gasoline exposure and AA. In fact, Dr. Harrison's cited testimony confirms that no such studies exist (or at least have been cited):

Q. Were you able to find epidemiologic literature specific to the association between gasoline exposure and aplastic anemia?

A. Not specifically between gasoline and aplastic anemia. I'm not aware of any – well, let me put it to this this way: There are studies of gasoline attendants that show – people that pump gasoline that show genotoxicity, and I have those cited.

There – and I'm trying to think where there are any studies of gasoline attendants and aplastic anemia. I can't think of any epidemiological studies that – that have been done one way or the other that shed light on that question. (Harrison Depo. at 19:20-20:9.)

Again, when asked if he found any studies linking **gasoline** exposure to AA he noted that he "didn't find anything particularly applicable or useful that that regard." (*Id.* at 36:2-6.)

Instead, Plaintiffs argue that "gasoline and benzene are equally capable of causing genotoxicity, AML and AA." (Resp. to UMF 12.) Plaintiffs fail to provide any support for this statement. Instead, the only studies review and cited by Dr. Harrison relate to benzene exposure, and do not discuss exposure to gasoline. Dr. Harrison also fails to demonstrate why benzene-specific studies can reliably support his conclusion that gasoline can cause AA. As other courts have noted, the "court cannot simply presume that the qualitative toxic and carcinogenic effects of benzene from *any source* are the same." (*Henricksen v. Conoco Phillips Co.* (2009) 605 F.Supp.2d 1142, 1156.) The simple explanation that gasoline contains benzene, and benzene causes certain diseases (such as AA) cannot be the justification for such extrapolation. Benzene and gasoline are physically and toxicologically different. (UMF 15.) "If it is possible to extrapolate from studies of benzene or other benzene-containing products conclusions regarding gasoline, then it will be **incumbent upon Plaintiffs** to explain and demonstrate why the extrapolation is scientifically proper." (*Ibid.* emphasis added.)

The focus of this litigation is the relationship, if any, between exposure to **gasoline** containing benzene as a component and AA. Dr. Harrison fails to make this connection. None of the studies relied upon have concluded that gasoline has the same toxic effect as benzene, and none have shown

that the benzene component of gasoline is capable of causing AA. Dr. Harrison fails to provide a scientifically supported explanation for his conjecture.

This failure becomes starker when added to the fact that Dr. Harrison relies heavily upon studies showing a connection between high levels of benzene exposure causing AML – which Mr. Prewitt does not have.

AA versus AML

It is undisputed that Plaintiff does not have AML. (UMF 9.) Texaco also asserts that there is no evidence that Mr. Prewitt will develop AML. (UMF 10.) Plaintiffs ‘deny’ this assertion (as opposed to disputing it), indicating that Dr. Harrison opines that Mr. Prewitt is at a ‘measurable risk of developing AML.’ (Response to UMF 10.)

In support, Plaintiffs cite portions of Dr. Harrison’s deposition testimony where he testifies that Mr. Prewitt’s AA is permanent and as such, he has a risk of AA “transforming or becoming Acute Myelogenous Leukemia, AML.” (Harrison Depo. 10:13-19.) He notes that Mr. Prewitt (at the time of the deposition) had AA for six years and that there is a “measurable risk of [AA] developing into AML or relapsing.” (*Id.* at 10:24-11:2.) Dr. Harrison considers AA “in the spectrum of blood disorders that can be caused by chemical exposure,” or one “manifestation of several blood problems that are caused by chemical exposure.” (*Id.* at 14:18-15:5.)

Dr. Harrison does not explain what the basis is for his statement that AA can “transform or become” AML. When asked why he believed it was important to rely on epidemiology that was specific to AML (or other diseases that are not AA), he stated:

A. Because we’re talking about a spectrum of diseases, disorders caused by benzene. So benzene causes aplastic anemia. Aplastic anemia, a certain percentage of those cases will become AML. And there are some papers in the benzene and aplastic anemia reference list where that happened – exactly happened, okay, that had been reported by doctors where first somebody had aplastic anemia and they then developed AML.

And there were patients that just went right to AML, didn’t have aplastic anemia first.

...

[In some studies the doctors followed patients and] they say first they had aplastic anemia. Then they developed AML.

So it’s very relevant because it’s a precursor. It’s – it’s on the spectrum.” (*Id.* at 40:3-41:10.)

He goes on to testify that “there’s a certain percentage of aplastic anemia that becomes AML ... there’s no question there’s a certain percentage that became AML.” (*Id.* at 41:17-42:2.) In his report, Dr. Harrison states: “In many cases where benzene has caused AA, the AA is considered a precursor blood disease that can lead directly to acute myelogenous leukemia (AML).” (Def. Evid. p. 153, Report p.3.) There is no citation to evidence supporting this statement.

Q. Would you agree that of all AML cases that are diagnosed, only about 2 percent of them had a preexisting aplastic anemia?

A. I – I don’t know. I would agree that is probably a fairly small percent. (Harrison

Depo. 18:19-23.)

When asked what the utility was of putting the ‘hematopoietic cancers together with noncancers like [AA] and myelofibrosis,” he explained that there was a “common pathway” for chemicals such as benzene to cause genetic damage. (*Id.* at 15:16-16:22.) The genetic damage can “lead to the loss of production of your platelets, white blood cells, red blood cells. It can lead to abnormal early cancer cells.” (*Ibid.*) In other words, the exposure to chemicals (like benzene) can cause genetic damage “that then leads to different blood disorders.” (*Ibid.*)

Despite all the above, Dr. Harrison does not provide any citations to studies or research which actually state that AA ‘transforms’ or ‘becomes’ AML. He does not explain why, even though he agrees that only a ‘fairly small percent’ of patients with AML had preexisting AA, that he believes AA ‘becomes’ or ‘transforms’ into AML. Nor does he explain what factors are relevant to consider in determining when a case of AML will ‘transform’ into AA.

Based on the above, the Court finds that Plaintiffs have failed to produce admissible evidence supporting its burden to show a triable issue of material fact regarding general causation.

Specific Causation

As the Court determined that Plaintiffs have failed to meet its burden regarding general causation, it is not necessary to address the specific causation arguments. (*Johnson & Johnson*, *supra*, 37 Cal.App.5th at 330-31.) If general causation could be presumed, Plaintiffs still failed to present admissible evidence pertinent to the specific causation requirement.

Differential Diagnosis/Etiology

While it is “generally correct that in many (or even most) instances epidemiological studies provide the best evidence of causation,” that is not the only method for establishing causation. (*Davis v. Honeywell Internat. Inc.* (2016) 245 Cal.App.4th 477, 491.) “[T]here is no requirement that a causation expert rely on a specific study or other scientific publication expressing precisely the same conclusion at which the expert has arrived.” (*Gerner v. BNSF Railway Co.* (2024) 98 Cal.App.5th 660, 677, cases cited therein.)

Plaintiffs have not identified any epidemiological studies that discuss the association between gasoline exposure and AA. (UMF 12.) As there were no such studies, Plaintiffs’ expert instead maintains he performed a ‘differential etiology’ or ‘differential diagnosis’ to support his opinion.

“Differential diagnosis, or differential etiology, is a standard scientific technique of identifying the cause of a medical problem by eliminating the likely causes until the most probable one is isolated....” (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 307, fn. 9 quoting *Clausen v. M/V Carissa* (9th Cir. 2003) 339 F.3d 1049, 1057-58 (“J&J Cases”)) It is “defined as ‘the determination of which of two or more diseases with similar symptoms is the one from which the patient is suffering, by a systematic comparison and contrasting of the clinical findings.” (*Cooper v. Takeda Pharmaceuticals America, Inc.* (2015) 239 Cal.App.4th 555, 565, fn. 6.)

“The first step in the diagnostic process is to compile a comprehensive list of hypotheses that might explain the set of salient clinical findings under consideration. [Citation.] The issue at this point in the process is which of the competing causes are *generally* capable of causing the patient’s symptoms or

mortality. ... [¶] After the expert rules in all of the potential hypotheses that might explain a patient's symptoms, he or she must then engage in a process of elimination, eliminating hypotheses on the basis of a continuing examination of the evidence so as to reach a conclusion as to the most likely cause of the findings in that particular case." (*J&J Cases*, supra, 37 Cal.App.5th at 307, fn. 9.)

When ruling out potential causes, "an expert 'must provide reasons for rejecting alternative hypotheses 'using scientific methods and procedures' and must rely on 'more than subjective beliefs or unsupported speculation.'" (*Engilis v. Monsanto Co.* (2025) 151 F.4th 1040, 1053 citations omitted.) In other words, the expert's opinion must contain "a reasoned explanation illuminating why the facts have convinced the expert, and therefore should convince the jury, that it is *more probable than not* the negligent act was a cause-in-fact of the plaintiff's injury.'" (*Cooper v. Takeda Pharmaceuticals America, Inc.* (239 Cal.App.4th 555, 578 quoting *Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1118.)

"[A] 'differential diagnosis' can be a 'reliable method of medical diagnosis.' [citations]. But, they still must show that the steps taken as part of that analysis -- the 'ruling out' and the 'ruling in' of causes -- were accomplished utilizing scientifically valid methods." (*Milward v. Rust-Oleum Corp.* (2016) 820 F.3d 469, 476.)

Texaco argues that including gasoline/benzene exposure in the list of possible causes of Mr. Prewitt's AA was improper due, at least in part, to the time between Mr. Prewitt's exposures to gasoline/benzene and his development of AA.

Latency

Mr. Prewitt's exposures to gasoline containing benzene occurred between 1975 and 2003. He was diagnosed with AA in September 2019 – approximately 44 years after his initial exposure and 16 years after his last alleged exposure. Texaco's expert, Dr. Pyatt, cites over 60 studies indicating that when benzene exposure is sufficient enough to cause AA, the bone marrow damage becomes evidence within weeks or months after the exposure ended, and often time during the actual exposure. (D's App. p. 31-32.) As Dr. Pyatt's report notes, a recent study concluded that the "latency between exposure and hematologic manifestations ranging on average from four months to four years." (*Ibid.*) Another study involving AA induced by chloramphenicol (a potent, broad-spectrum antibiotic) showed no cases that occurred more than 1.5 years after treatment. In reviewing all of the studies, Dr. Pyatt found that they collectively "provide a consistent picture that chemically-induced AA has an onset (latency) most commonly reported in months and often while the patient is actively being treated/exposed." (*Ibid.*) The outside limit in the studies appears to be four years.

As noted above, Mr. Prewitt was first exposed to the benzene containing gasoline 44 years prior, and experienced his last exposure roughly 16 years, prior to his diagnosis. As such, based on all the studies available Dr. Pyatt concludes that the "literature describing chemically-induced AA is not reconcilable with the allegations made by Dr. Harrison in this case." (*Ibid.*; UMF 14.)

Plaintiffs 'dispute' UMF 14 by discussing studies that discuss the latency period for AML. (Resp. to UMF 14.) Plaintiffs also argues that his "diagnosis with AA fits the known latency period for AA and AML, whether that is measured from first exposure or last exposure to benzene," citing Plaintiffs' UMFs 101-109.) A review of the evidence in support of those UMFs does not aid Plaintiffs.

For example, Plaintiffs assert that “Yin 1987 showed a latency period for benzene-induced AA of 19 years.” The evidence in support, Dr. Harrison’s deposition testimony, does not corroborate this assertion. In the deposition he was asked about the Yin paper, and whether he was using that to support his opinion regarding the long latency period. This paper appears to indicate that the average latent period was “118 and a half days.” (Harrison Depo. at 144:3-16.) Dr. Harrison states:

A. Yes. [¶] And I was looking at aplastic anemia and leukemia. They were exposed to benzene from three and a half months to 19 years.

That’s not exactly the latency, right, because we don’t know the time between their exposure and when they were diagnosed. (*Id.* at 144:16-22 emphasis added.)

Plaintiffs’ UMF 103 also cites to and relies upon a couple of cases identified in the Aksoy study. To begin with, the deposition testimony in support appears to discuss a Vigliani study from 1964. (Harrison Depo. 147:20-24.) Presuming this is the same as the Aksoy study identified in the UMF, or it was misidentified, the cases cited do not appear to support Dr. Harrison’s claims. First, none of the patients were identified to have had AA. (*Ibid.*) Instead, the report related to 47 patients “two with anemia; seven had anemia and leukopenia; five anemia and thrombocytopenia; 26 had pancytopenia, six leukemia; and one a – what they called a leukemoid reaction.” (*Ibid.*)

As for the two specific cases relied upon by Dr. Harrison, cases 4 and 5, they both were eventually diagnosed with leukemia – not AA. (*Id.* at 148:23-149:10.) Likewise, the case discussed in the Degoin paper related to an eventual diagnosis of leukemia. (*Id.* at 149:23-151:7.) It appears to show that the patient had low blood counts for 13 years while he worked with paint thinners with benzene. While there was no actual diagnosis of AA, Dr. Harrison opined what they were describing was AA. The discussion appears to show that the patient had AA while he was using the benzene containing product. There is no indication there was a 13 year (or any gap) between exposure and diagnosis. The gap in exposure and diagnosis related to leukemia – which is a blood cancer and not AA.

The other studies discussed relate to AML diagnoses. There are no studies cited or relied upon by Dr. Harrison that directly state that AA can have a latency beyond that outlined by Dr. Pyatt. In addition, other than explaining that he believes that AA can sometimes (in a “fairly small percent” of cases) transition to AML, he does not explain why those studies would support the Plaintiffs’ case – since it is undisputed that Mr. Prewitt does not have AML. (UMF 9.)

The Court must “determine whether the matter relied on can provide a reasonable basis for the opinion or whether the opinion is based on a leap of logic or conjecture.” (*Sargon*, supra, 55 Cal.4th at 772.) Where the opinion is “based on a leap of logic or conjecture, the opinion may be excluded.” (*Apple Inc. v. Superior Court* (2018) 19 Cal.App.5th 1101, 1121.)

Based on the above, Dr. Harrison has not provided a sufficient explanation as to why gasoline/benzene exposure should have been included in his differential diagnosis given the lack of any scientific support for Plaintiffs’ case arising so long after his exposure ended.

Design and Manufacturing Defect

As the Court has previously ruled, Plaintiffs’ strict liability claims for alleged design and manufacturing defects are governed by Alabama law. As such, they are governed by the Alabama Extended Manufacturer’s Liability Doctrine (“AEMLD”). “The AEMLD is a judicially developed products liability

doctrine [which] is a modified version of strict liability that premises liability upon the sale by a manufacturer of a defective product.” (*Gore v. Winnebago Industries, Inc.* (11th Cir. 1992) 958 F.2d 1537, 1541.)

“To establish liability, a plaintiff must show: (1) he suffered injury or damages to himself or his property by one who sells a product in a defective condition unreasonably dangerous to the plaintiff as the ultimate user or consumer, if (a) the seller is engaged in the business of selling such a product, and (b) it is expected to and does reach the user or consumer without substantial change in the condition in which it is sold.” (*Yamaha Motor Co. v. Thornton* (Ala. Sup. Ct. 1991) 579 So.2d 619, 621 quoting *Casrell v Altec Indus.* (Ala. Sup. Ct. 1976) 335 So.2d 128, 132-33.)

“In an AEMLD action, ‘the plaintiff must affirmatively show that the product was sold with a defect or in a defective condition.’” (*Tanksley v. ProSoft Automation, Inc.* (Ala. Sup. Ct. 2007) 982 So.2d 1046, 1051 quoting *Jordan v. General Motors Corp.* (Ala. Sup. Ct. 1991) 581 So.2d 835, 836-37.) “Without evidence to support the conclusion that the product was defective and/or unreasonably dangerous when it left the hands of the seller, the burden is not sustained.” (*Ibid.*) “Proof of an accident and injury is not in itself sufficient to establish liability under the AEMLD; a defect in the product must be affirmatively shown.” (*Ibid.*)

“[O]rdinarily, expert testimony is required [in AEMLD cases] because of the complex and technical nature of the commodity.” (*Sears, Roebuck & Co. v. Haven Hills Farm, Inc.* (Ala. Sup. Ct. 1981) 395 So.2d 991, 995; see also, (*Parker v. Tricam Indus.* (M.D.Ala. May 1, 2025, No. 3:24-cv-79-RAH) 2025 U.S.Dist.LEXIS 82983, at *23 [“Alabama courts consistently require expert testimony to prove a defect [because] lay juries lack the knowledge, training, and expertise necessary to determine the existence of a defect in a technical product.”].) “When the product in question is of a complex and technical nature such that a lay juror could not, in the absence of expert testimony, infer that a defective condition of the product caused the product's failure and caused the resulting injury to the plaintiff, expert testimony is a necessary component of a plaintiff's case.” (*Cooper v. Toshiba Home Tech Corp.* (Ala. Mid. Dist. 1999) 76 F.Supp.2d 1269, 1276, multiple citations omitted.)

With a design defect claim, “a plaintiff must prove that ‘a safer practical, alternative design was available to the manufacturer at the time it manufactured the [product]. The existence of a safer, practical, alternative design must be proved by showing that:

(a) The plaintiff's injuries would have been eliminated or in some way reduced by use of the alternative design; and that

(b) taking into consideration such factors as the intended use of the [product], its styling, cost, and desirability, its safety aspects, the foreseeability of the particular accident, the likelihood of injury, and the probable seriousness of the injury if that accident occurred, the obviousness of the defect, and the manufacturer's ability to eliminate the defect, the utility of the alternative design outweighed the utility of the design actually used.” (*GMC v. Jernigan* (Ala. Sup. Ct. 2003) 883 So.2d 646, 662 citation omitted.)

“Thus, to testify that a challenged product is defectively designed, an expert witness must be qualified to testify that ‘a safer, practical, alternative design was available to the manufacturer.’” (*Beam v. McNeilus Truck & Mfg., Inc.* (Ala. N. Dist. Ct.) 697 F.Supp.2d 1267, 1276 quoting *GMC*, supra, 883 So.2d at 662.) The expert must also be “qualified to testify that the utility of the alternative design

outweighs the utility of the challenged design, and that use of an alternative design would have eliminated or reduced the injuries suffered.” (*Ibid.* citations omitted.) The plaintiff must also submit evidence “from which the jury could find the suggested alternatives are not only technically feasible but also practicable in terms of costs and the over-all design and operation of the project.” (*Elliott v. Brunswick Corp.* (11th Cir. 1990) 903 F.2d 1505, 1510.)

Texaco first argues the Plaintiffs have failed to designate an expert to testify regarding the design and manufacturing defect issues. Texaco cites Plaintiffs’ interrogatory responses which indicate that Plaintiffs intended to provide Dr. Harrison and Dr. Jones as experts regarding the design and manufacturing defects. (App. Evid. at e.g. 327 (No. 43); 334 (No. 48).)

Plaintiffs’ expert disclosure form, however, does not designate either of those persons, nor anyone else, as an expert pertaining to design and/or manufacturing defects. (App. Evid. at 276-79.) The Disclosure lists several medical providers that may testify as to Mr. Prewitt’s medical condition as well as two experts “designate[d] as causation expert witnesses,” *i.e.* Drs. Harrison and Jones. (App. Evid. at 276-79.) There is no indication that Plaintiffs have designated any expert regarding design or manufacturing defects.

Plaintiffs do not address this concern directly, but instead ‘deny’ the relevant UMFs and indicate that Dr. Jones’ report provides evidence in support of manufacturing and design defects, citing particular portions of her report. (See UMF Response 17-21.) Plaintiffs argue that Dr. Jones’ report shows that gasoline with lower levels of benzene than that included in Texaco’s gasoline was available on the market as early as the 1970’s. (Opp. at 22:18-26.) They argue that lower benzene levels in gasoline is safer than gasoline with more benzene because it causes less exposure to benzene. While this explanation may make sense in the abstract, Plaintiffs experts fail to provide any opinions supporting, explaining, or qualifying this theory. In addition, Plaintiffs fail to point to any testimony or evidence which suggests that the alternative lower benzene gasoline formula is “not only technically feasible but also practicable in terms of costs and the over-all design and operation of the project.” (*Elliott*, *supra*, 903 F.2d at 1510.)

To the extent Plaintiffs attempt to rely on the US EPA report, such a report is not a substitute for expert testimony discussing the scientific principles and methodologies at issue and explaining these complicated issues to the trier of fact. Lay jurors would have no way to decipher the 140+ page technical paper, much less how its technical finds relate to this case. For example, the paper discusses benzene related to vehicle exhaust – not exposure via inhaling gasoline fumes – and its impact on cancer rates. It is undisputed, however, that Mr. Prewitt’s AA is not cancer. As such, further explanation would be required.

Based on the above, Texaco’s MSA as to the design defect and manufacturing defect causes of action is **granted**.

Summary and Conclusion

Texaco has met its burden to show that Plaintiffs’ causes of action have no merit by showing that the element of causation cannot be established. As such, the burden shifted to Plaintiffs to show that a triable issue of material facts does exist. “To meet this burden, the plaintiff must produce admissible evidence.” (*Borders Online*, *supra*, 129 Cal.App.4th at 1188, citations omitted.) This,

Plaintiffs have failed to do.

Texaco has also shown that Plaintiffs do not have admissible expert testimony required to support their defect cause of action.

Accordingly, Defendant Texaco's motion for summary judgment is **granted**.

Evidentiary Issues

Objections to Evidence

Plaintiffs' Objections

Written objections to evidence must follow one of two formats as set forth in the California Rules of Court. (Cal. R. Ct. 3.1354(b)). The objections must be "numbered consecutively" and must (1) identify the name of the document where the specific material objected to is located, (2) state the exhibit, title, page, and line number of the material objected to, (3) quote or set forth the objectionable statement or material, and (4) state the ground for the objection. (*Ibid.*)

Plaintiffs do not number any of their objections, and while the first two documents they are objecting to are identified, the third objection is to a statement – but Plaintiffs do not identify the name of the document where that statement is located, or the exhibit, title, page and line number where it can be found. Without this information, the Court cannot understand the context of the statement or even who made it.

The party submitting the objections "must submit with the objections a proposed order." (*Ibid.*) The proposed order must include a place for the Court to indicating whether it has sustained or overruled each objection, and a place for the signature of the judge. (*Ibid.*) The proposed order must also be in one of two formats. (*Ibid.*) The failure to comply with the requirements of Rule 3.1354 is sufficient basis to overrule those objections. (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1118.)

Plaintiff's objections fail to comply with the above requirements and can consequently be overruled on that basis alone. The Court also finds each of Plaintiffs' objections to be without merit and overrules each accordingly.

Texaco's Objections

Objections 1-10: Sustained (Improper opinion *Jacobs v. Fire Ins. Exchange* (1995) 36 Cal.App.4th 1258, 1270.)

Objection 11: Sustained (Evid. Code § 1200.)

2. 9:00 AM CASE NUMBER: C23-00639
CASE NAME: 4740 APPIAN WAY HOMEOWNERS ASSOCIATION VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CHANG, HOUY CHYUN
TENTATIVE RULING:

Defendant Huoy Chyun Chang's Demurrer to Plaintiff 4740 Appian Way Homeowners Association's First Amended Complaint is **overruled**. Plaintiff shall prepare the order and file and serve notice of entry of the order. Defendant shall answer to the FAC within 15 days after service of notice of entry of the order.

I. Background

On March 22, 2023, Plaintiffs 4740 Appian Way Homeowners Association ("HOA") filed a lawsuit for Condemnation and Negligence against Defendant Contra Costa County ("the County") and Does 1 through 100 for water damage allegedly caused by backup from storm and sewage drains that were owned, managed, repaired, and/or maintained by the County. The water damage occurred on December 15, 2021. The HOA alleges that upon an investigation of the source of the intrusion in February 2022, it was determined that the storm drains were obstructed by concrete that was poured into them during sidewalk construction and repairs which were performed by the Contra Costa County Department of Public Works.

On January 2, 2024, Plaintiffs Michael and Cygridh Rooney, owners of Unit 11 of 4740 Appian Way, filed a separate complaint against Contra Costa County, Global Housing Alliance, LLC, and neighboring property owners Albert Cembura and Huoy Chyun Chang. The Rooney Plaintiffs allege causes of action for negligence and condemnation arising from the December 15, 2021 flood, and that the defendants in that case either intentionally or negligently diverted the floodwaters onto their property. Michael Rooney has stated in pleadings that that he filed a separate case because he thought the HOA had not named all responsible parties.

On October 2, 2024, the Court consolidated the HOA action and the Rooney action for all purposes, with the HOA action designated as the lead case. On August 11, 2025, the Court granted the HOA leave to amend its complaint to add additional claims and defendants, including Defendant Chang.

The HOA filed its First Amended Complaint ("FAC") on August 14, 2025, alleging causes of action for (1) inverse condemnation (County), (2) negligence (All Defendants), (3) negligence per se (Neighbor Defendants), (4) trespass (Neighbor Defendants), and (5) nuisance (Neighbor Defendants). The FAC alleges that the Neighbor Defendants made unpermitted modifications to the portions of Appian Creek running through their respective properties, failed to adequately maintain those portions of the creek, and filled in or otherwise obstructed the creek. These modifications allegedly constricted the flow of water, causing the creek to overflow and flood Appian Way and the Association Development. The FAC further alleges that discovery obtained through the consolidated Rooney lawsuit confirmed that the Neighbor Defendants have continued to modify their respective portions of Appian Creek in an unpermitted manner. (FAC ¶¶ 19, 20, 29, 30.)

Defendant Chang, identified in the FAC as one of the "Neighbor Defendants," demurs to the FAC. Chang argues that the FAC is time-barred, and otherwise fails to state facts sufficient to constitute a cause of action.

On timeliness, Chang argues that the claims against him are barred by the applicable statute of limitations because he was not added as a defendant until the FAC was filed in August 2025, more than three years after the December 15, 2021 flooding incident. Chang argues the relation-back doctrine does not apply because the HOA cannot show genuine ignorance of Chang's identity. Chang

points to statements attributed to Rooney expressing dissatisfaction with the HOA's decision not to include the neighboring property owners in the original action and notes that Rooney later filed a separate lawsuit against Chang and the other neighboring defendants on January 2, 2024. Chang argues this information shows the HOA knew or should have known of the Chang's identity earlier and thus it could not rely on Doe pleading or the relation back doctrine to add Chang after the statute of limitations expired.

Chang also argues the HOA's pleading is defective because the FAC impermissibly groups the Neighbor Defendants together and attributes alleged wrongdoing collectively, without identifying any specific act or omission by Chang that might support liability.

II. Meet and Confer

California Code of Civil Procedure section 430.41, subdivision (a) requires parties to "meet and confer" before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. § 430.41, subd. (a)(3).)

Defendant's counsel submits a declaration indicating the parties met and conferred by phone but were unable to resolve the issues. (Goncharova Decl. ¶ 12.) Accordingly, Defendant satisfied the meet and confer requirement.

III. Demurrer Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . ." (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

IV. Discussion

A. Statute of Limitations and Section 474 Relation-Back Arguments

The parties frame timeliness primarily through Code of Civil Procedure section 474 and the Doe-defendant relation-back doctrine. Chang argues that because Chang was not named as a defendant until the FAC was filed in August 2025, more than three years after the December 15, 2021 flood, the claims are barred unless the amendment relates back to the filing of the original complaint. However, Chang argues that relation back is unavailable because the HOA cannot demonstrate that it was genuinely ignorant of Chang's identity when the complaint was filed. The HOA responds that while it

may have known Chang's identity, it was genuinely ignorant of the facts giving rise to a cause of action against Chang at that time. Relying on *San Diego Navy Broadway Complex Coalition v. California Coastal Comm'n* (2019) 40 Cal.App.5th 563, the HOA argues that ignorance must extend not only to identity, but to a defendant's culpable conduct. The HOA claims it initially believed the County alone caused the flooding and did not discover facts supporting claims against Chang until further investigation revealed modifications to the creek. The HOA claims its amendment was timely once sufficient facts were discovered, and there is no prejudice because Chang was already named as a defendant in the Rooney action.

Under CCP section 474, where a complaint is amended after the statute of limitations has run to identify a fictitiously named defendant, the amended complaint will relate back to the date of the original filing only if (1) the original complaint stated a valid cause of action against the now-identified Doe defendant, (2) the plaintiff was genuinely ignorant of the defendant's identity at the time of filing, and (3) the amended complaint is based on the same general set of facts as the original. (*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600–601.)

Here, the FAC names Chang directly and does not identify Chang as a substituted Doe defendant, nor does the summons identify Chang as such. Although courts have treated noncompliance with the formal Doe substitution procedure as a potentially curable procedural defect rather than an automatic bar to invoking section 474 (*Woo v. Superior Court* (2000) 75 Cal.App.4th 169, 176–177), the Court cannot resolve the parties' section 474 dispute on demurrer. Even assuming section 474 could apply notwithstanding the manner in which Chang was added as a party, the issues of genuine ignorance, diligence, and prejudice are factual in nature and not amenable to resolution at the pleading stage. (See *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1066–1067 [challenge to Doe amendment requires an evidence-based showing of unreasonable delay and prejudice].)

Separately, a statute of limitations demurrer lies only where the time bar clearly and affirmatively appears on the face of the FAC or from matters subject to judicial notice. (*Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.) Because the section 474 issues are not amenable to resolution on demurrer, the Court next considers whether the FAC shows that the HOA's claims are time barred and finds that it does not.

As the HOA points out, application of the statute of limitations to the trespass and nuisance causes of action depends on whether the alleged condition is permanent or continuing. "The crucial test of the permanency of a trespass or nuisance is whether the trespass or nuisance can be discontinued or abated." (*Madani v. Rabinowitz* (2020) 45 Cal.App.5th 602, 608–609.) A trespass or nuisance is continuing if it "can be remedied at a reasonable cost by reasonable means." (*Id.* at p. 609.)

The HOA asserts in its opposition that the FAC alleges the Neighbor Defendants' intrusions can be abated by removing unpermitted modifications and properly maintaining the creek. (See Opp. p. 4:11–13.) The Court did not locate any such allegation in the FAC. However, the absence of a specific abatement allegation does not establish permanence as a matter of law. While the FAC alleges the creek portions "have not been maintained and upon information and belief have been filled in or otherwise obstructed" by the Neighbor Defendants (FAC ¶ 19), this does not establish that any such

obstruction is fixed, intended to be permanent, or incapable of abatement.

The HOA alleges that the Neighbor Defendants “have and continue to modify” portions of Appian Creek in an unpermitted manner, constricting water flow and causing overflow flooding to the HOA property. (FAC ¶ 20.) It further alleges that even after the County cleared the storm drains, the HOA “continued to be inundated with flood waters” during the winter of 2023 which required mitigation. (FAC ¶ 18.) Even if recurring flooding might not restart the limitations period were the alleged condition permanent, as noted, the FAC does not establish permanency as a matter of law.

B. Whether the FAC Otherwise States a Cause of Action Against Chang

Chang argues the FAC fails to state facts sufficient to constitute a cause of action because the allegations are pleaded collectively against the "Neighbor Defendants" and certain allegations are made "upon information and belief." In substance, Chang's objection is that the FAC does not describe Chang's individual conduct with sufficient detail, an argument sounding in uncertainty rather than failure to state a claim. Demurrers for uncertainty are disfavored and strictly construed, particularly where any lack of detail can be clarified through discovery. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Here, the FAC alleges that the Neighbor Defendants failed to maintain, and upon information and belief, they filled in or otherwise obstructed, portions of the creek running through their respective properties, and that they made unpermitted modifications that constricted the flow of water and caused flooding downstream, including to the Association Development. (FAC ¶¶ 19, 30, 32–44.) These allegations, accepted as true, are sufficient to apprise Chang of the conduct alleged. And while it is better practice identify the information giving rise to allegations made on information and belief, the Court declines to require the HOA to amend on this ground. As the property owner, Chang is in a position to know what was or was not done to the creek, and the specific basis for the HOA's contention that Chang obstructed the creek in a manner that harmed the HOA may be obtained through discovery.

V. Conclusion

For the foregoing reasons, the demurrer is overruled. Plaintiff shall prepare the order and file and serve notice of entry of the order. Defendant shall answer to the FAC within 15 days after service of notice of entry of the order.

3. 9:00 AM CASE NUMBER: C23-01274

CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL FOR CLASS ACTION AND PAGA SETTLEMENT SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Natasha Windom ("Plaintiff") filed Motion for Final Approval of Class Action and PAGA Settlement is **granted** as set forth below. No appearance is required at the hearing on March 4, 2026.

Background

Plaintiff Natasha Windom ("Plaintiff") filed Motion for Final Approval of Class Action and PAGA Settlement in the gross settlement amount of \$250,000.00 on February 9, 2026, which was supported by Notice, Memorandum of Points and Authorities, Declarations of Arrash Fatahi, Natasha Windom, Stacy Shim and Proposed Judgment and Order. The Motion seeks an order:

1. Granting final approval of the proposed Class Action Settlement Agreement;
2. Awarding Class Counsel attorneys' fees in the amount of \$83,333.33 and reimbursement of litigation costs not to exceed \$25,000.00;
3. Awarding Plaintiff an Incentive Award in the amount of \$10,000.00;
4. Awarding \$4,990.00 to Apex Class Action, LLC ("APEX") for its settlement administration expenses; and
5. Approving allocation of \$10,000.00 as civil penalties under the Private Attorneys' General Act of 2004 ("PAGA"), 75% of which (\$7,500.00) will be paid to the California Labor and Workforce Development Agency, and 25% of which (\$2,500.00) will be distributed to PAGA Members based on the number of pay periods worked during the PAGA Period.

There is no timely opposition to the Motion.

Analyses

1. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provides guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State*

Auto. Assn. Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

2. Attorney fees, costs, and plaintiff incentive award

Plaintiff seeks one-third (33.3%) of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel now provides an estimated lodestar fee of \$93,345.00. This is based on a total of 128.2 hours, with hourly rates ranging from \$600-850.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. Litigation costs of \$16,083.46 are reasonable and are approved. The finds that the amount of \$4,990.00 to Apex Class Action, LLC (“APEX”) for its settlement administration expenses is reasonable.

Plaintiff requests an incentive payment of \$10,000. Criteria for evaluation of such requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. She submits a declaration attesting to his time and effort spent on the matter (about 30 hours), as well as the risk she took by becoming a plaintiff. She released other individual claims, but does not suggest that she had any other claim of value that is released in the settlement. All things considered, the amount is approved.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

The motion is **granted**. Counsel are directed to conform the proposed order lodged on February 10, 2026 to reflect this tentative ruling, the other findings in the previously submitted proposed order, and a final judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, to be arranged by counsel in consultation with the Department Clerk.

Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. No appearance is required at the hearing on March 4, 2026.

4. 9:00 AM CASE NUMBER: C23-01583

CASE NAME: S A VS. EARTH SEEDS LLC

*HEARING ON MOTION FOR DISCOVERY TO COMPEL AN I.M.E. OF PLAINTIFF, S.A.

FILED BY: EARTH SEEDS LLC

TENTATIVE RULING:

Summary

Defendant's Motion to Compel Independent Mental Examination of Plaintiff S.A. is **granted** as set forth herein.

Background

In this litigation, Plaintiffs allege that Defendant Rachel Bolden-Kramer's One and Half year old son touched S.A.'s penis while S.A. was using the bathroom at the Little Earth Seeds Preschool. Later, S.A. began displaying troubling behavior and had informed his parents that another older student had placed his finger in S.A.'s anus. The lawsuit alleges that Defendant Earth Seeds did not properly staff the preschool and failed to properly supervised the children. S.A. claims to have suffered emotional distress and seeks future treatment for this injury. After meeting and conferring, Defendants claim that Plaintiffs would not allow discovery into these allegations by refusing to permit an independent mental examination.

On September 4, 2025, Defendants Earth Seeds LLC dba Little Earth Seeds Preschool and Rachel Bolden-Kramer ("Defendants") filed a Motion to Compel an independent mental examination of Plaintiff S.A. and guardian ad litem / parent Jasmine Hudson and S.A.'s father ("Plaintiffs") to submit to a mental examination, testing and interview. The Motion is supported by a Memorandum of Points and Authorities, Notice and Declaration of Counsel Nancy McPherson. The Motion requests that Dr. Anlee Kuo perform a mental examination and appoint Dr. Angie Branham, Ph.D., to perform relevant psychological testing.

Plaintiffs filed an opposition on February 23, 2026 claiming that the examination is overly broad, subjecting S.A. to a seven-hour multi-modal multi-practitioner mental examination that would include autism, IQ, attention and learning disabilities and parenting style impact without offering proof that these tests are necessary and relevant to the injuries. Plaintiff objects to the IME, but requests the following limitations in the event the Court was inclined to permit it:

1. The exam must be limited to only tests administered to determine Plaintiff's scope and severity of emotional distress, specifically the Trauma Symptom Checklist for Children (TSCC). No other tests shall be permitted, absent subsequent written agreement of the parties otherwise;
2. The exam must not include any interview or questions that require Plaintiff to recount or retell the facts of the subject incident;
3. There shall be no oral or written questions related to Plaintiff's medical history, medications, academic performance, or "vocational" performance, and there shall be no tests for Autism, IQ, learning styles and abilities or disabilities, absent a demonstration of good cause for such testing resulting in the agreement between the parties and or a subsequent Court order for such tests;
4. A reasonably tailored mental exam would take no more than 1-1.5 hours and would automatically comply with Code of Civil Procedure Section 2032.340;

5. Plaintiff's parents who are not parties to this suit and over whom the Court has no jurisdiction shall not be required to participate in any mental examination, evaluation or interview;
6. Plaintiff is entitled one support person during the mental examination, such as a parent, or a counselor or therapist; and
7. . The raw testing data, interpretations, conclusions, and audio recording from the examination must be produced to Plaintiff's counsel within five business days or Defendants forfeit their right to use any data or opinions derived therefrom at trial.

Defendants did not file a reply brief by February 27, 2026 as stipulated.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to Independent Medical Examinations, Defendants brought their motion pursuant to Cal. Code of Civ. Proc. §§ 2032.310 which, states A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

Cal. Code of Civ. Proc. § 2032.320(c) states: (1) A mental examination conducted under this chapter

shall be performed only by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders.

Additional protections are afforded under Cal. Code of Civ. Proc § 2032.510, which permits an attorney or representative “to attend and observe any physical examination conducted for discovery purposes, and to record stenographically or by audio technology any words spoken to or by the examinee during any phase of the examination” provided that he/she does not participate or disrupt the examination.

In analyzing this motion in light of the foregoing authorities, the Court finds that a mental examination of the minor child, S.A. is appropriate, as he is claiming emotional distress and will be seeking future medical care relating to this alleged injury. As such, good cause exists to permit the mental IME as set forth by Defendants. However, the Court also finds good cause to impose some, but not all, limitations requested by Plaintiffs as follows.

Ruling

Good cause appearing, Defendant’s Motion to Compel the Independent Mental Examination of Plaintiff S.A. is **granted** as follows:

1. The examination shall be conducted by Dr. Anlee Kuo and Dr. Angie Branham, Ph.D., to perform relevant psychological testing.
2. The examination shall take place no later than forty five (45) days from the date of this order, or at some future date as stipulated by the Parties.
3. The examination shall not take more than 5 hours over two consecutive days.
4. The exam must be limited to only tests administered to determine Plaintiff’s scope and severity of emotional distress, specifically the Trauma Symptom Checklist for Children (TSCC). No other tests shall be permitted, absent subsequent written agreement of the parties otherwise;
5. There shall be no tests for Autism, IQ, learning styles and abilities or disabilities, absent a diagnoses of autism or learning disabilities, in which case, such testing shall be reasonably limited to the effect of said autism or learning disabilities on S.A.’s emotional distress as determined by Dr. Kuo or Dr. Branham in their professional medical opinion.
6. Plaintiff’s parents who are not parties to this suit and over whom the Court has no jurisdiction shall not be required to participate in any mental examination, evaluation or interview.
7. Plaintiff’s parents may designate a support person to attend the mental examination, provided that this support person does not interfere with, disrupt or participate in the examination, which shall include Plaintiff’s attorney per Cal. Code of Civ. Proc § 2032.510.
8. The raw testing data, interpretations, conclusions, and audio recording from the examination must be produced to Plaintiff’s counsel within 15 business days. However,

neither Dr. Kuo nor Dr. Branham are required to prepare a comprehensive report during that timeframe.

9. The provisions of Cal. Code of Civ. Proc § 2032.510 shall apply to this mental examination.
10. Defendants' attorney shall prepare and e-file an order that conforms to this order no later than five (5) day from the date of this hearing, attaching a copy of this tentative ruling.

5. 9:00 AM CASE NUMBER: C23-02424
CASE NAME: DANIEL HOCOG VS. SERVICE MANAGEMENT SYSTEMS, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: HOCOG, DANIEL THOMAS ATALIG
TENTATIVE RULING:

Summary

Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement is **granted** as set forth herein.

Background

On September 24, 2025, Plaintiffs Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr.'s (collectively, "Plaintiffs") filed their Motion for Preliminary Approval of Class Action and PAGA Settlement ("Motion"), including the Declaration of John G. Yslas, and the Joint Stipulation Re: Class Action and PAGA Settlement ("Initial Settlement") and Supplemental Agreement to Class Action and PAGA Settlement Agreement ("Supplemental Agreement"). The relief sought is as follows:

1. Granting preliminary approval of the proposed Joint Stipulation Re: Class Action and PAGA Settlement ("Initial Settlement") and Supplemental Agreement to Class Action and PAGA Settlement Agreement ("Supplemental Agreement") (collectively, with "Initial Settlement", the "Settlement").
2. Conditionally certifying the proposed Class for settlement purposes only;
3. Conditionally appointing Plaintiffs as the Class Representatives;
4. Conditionally appointing Wilshire Law Firm, PLC as Class Counsel;
5. Appointing Apex Class Action Administration as the Settlement Administrator; and
6. Setting a final approval hearing date

A. Settlement Terms

The original complaint was filed on September 26, 2023, raising class action claims on behalf of non-exempt employees, alleging that Defendant Services Management Systems, Inc ("Defendant") violated the Labor Code by failing to pay minimum wages and failure to pay all wages due on separation. A First Amended Complaint was filed on August 26, 2026. The main terms of the Settlement are as follows:

1. A Gross Settlement Amount of \$265,000.00, which will be distributed to approximately 321 Class Members on a pro rata basis according to the total workweeks worked by each Class Member during the Class Period;
2. Attorneys' fees of up to one-third (1/3) of the Gross Settlement Amount (currently

\$88,333.33) and in reimbursement of litigation costs to Plaintiffs' Counsel up to \$20,000.00; The entire settlement amount will be deposited with the settlement administrator within 28 days after the effective date of the settlement (which is specifically defined to account for contingencies such as objections and appeals).

3. Class Representatives Service Payments of up to \$5,000.00 to each Plaintiff;

4. Costs of settlement administration of up to \$8,800.00; and

5. Allocation of \$40,000.00 to PAGA penalties, seventy-five percent (75%) of which (\$30,000.00) will be paid to the Labor and Workforce Development Agency ("LWDA"), and twenty-five percent (25%) of which (\$10,000.00) will be paid to all non-exempt, hourly individuals that worked for Defendant in California at any time during the PAGA Period from January 2, 2023 through May 13, 2025.

The proposed settlement would certify a class of consisting of all current and former non-exempt employees employed by Defendant in California during the Class Period from April 1, 2019 through April 1, 2025, (or if any such person is incompetent, deceased or unavailable due to military service, the person's legal representative or successor in interest evidenced by reasonable verification). See Settlement Agreement at ¶¶ 1(f)-(g). The Class is also readily ascertainable from Defendant's business records, because all Class Members are or were employees of Defendant. Yslas Decl. at ¶ 12. Defendant's records show there are approximately 321 Class Members, which Plaintiffs contend makes joinder of all Class Members impracticable.

The settlement contains release language covering "all claims arising during the Class Period under state, federal, or local law, arising out of the claims pleaded in the Complaint on file in the action[...] claims based on alleged violations of these Labor Code and Wage Order provisions) and all other claims, such as those under the California Labor Code, Wage Orders, regulations, and/or other provisions of law, that could have been pleaded based on the facts asserted in the Action, including, but not limited to: (1) failure to timely pay employees upon separation or discharge; (2) failure to pay all wages due and owing for time worked; (3) all related violations of the applicable Wage Orders; (4) all related violations of California's unfair competition law; and (5) interest, fees, and costs[...]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible."] *Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, it is important that the "Released Claims" includes only claims that could have been pleaded "based on the facts asserted in the Action."

Counsel also has provided an analysis of the case, broken down by the unpaid minimum wage claims, rest breaks, and other claimed violations and applied a risk analyses of success at trial and potential exposure. Counsel attests that defendant may have substantial defenses, some based on the existence of a collective bargaining agreement and arbitration clauses and others based on "good faith," under *Naranjo v. Spectrum Sec. Serv., Inc.* (2024 15 Cal.5th 1056, 1077-1081.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The Motion is **granted**. The Court will execute the proposed order lodged on September 24, 2025. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. The Court will set the date in the proposed order. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Five percent (5%) of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. No appearance is required at the hearing on March 4, 2026.

6. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: FIGUEROA, JORGE

TENTATIVE RULING:

Summary

Defendants Sunshine Retirement Living LLC, Antioch Retirement Resident LP dba Quail Lodge Retirement Community and Jorge Figueroa's ("Defendants") Demurrer to Plaintiff's Second Amended Complaint is **sustained** without leave to amend.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), an opposition to a noticed motion must be filed and served at least nine (9) court days before the hearing. Here, the hearing on Defendants' Demurrer was noticed for March 4, 2026. Nine days before March 4, 2026 is February 19, 2026. No timely opposition was filed on February 19, 2026.

Plaintiff filed a late opposition on February 25, 2026. Counsel claims that he was not provided with timely notice of Defendants' Demurrer. However, the proof of service form filed by Defendants' counsel shows that he was served with this Demurrer on November 14, 2025 by electronic mail. +The Court finds that service was effectuated on Plaintiff's Counsel. Moreover, Counsel's Declaration accompanying Plaintiff's late filed opposition does not contain sufficient facts that support good cause for Counsel's failure to file the opposition timely.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them." According to Counsel's declaration, he claims that he did not receive notice of the hearing on Defendants' demurrer to the Second Amended Complaint and happened to review the docket and realized that the demurrer was set for hearing. The Court does not consider the late-filed opposition filed by Plaintiff.

7. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 7 and 8.

1. Cross-Defendants' Jane Doe 1, Guardian Ad Litem of Jane Doe 1; Jane Doe 2; Parent of Jane Doe 2; Jane Doe 3, Guardian Ad litem of Jane Doe 3; Jane Doe 4 and Guardian Ad Litem of Jane Doe 4's ("Cross Defendants") unopposed Demurrer to Cross Complainant Nicholas Moseby's Amended Cross Complaint filed on November 3, 2025 is sustained without leave to amend.
2. Cross Defendants unopposed Motion to Strike Portions of Cross-Complainant Nicholas Moseby's Amended Cross-Complaint filed on November 3, 2025 is granted without leave to amend.
3. No appearance is required at the hearing on March 4, 2026.

Analyses

The Court finds that Cross-Complainant Nicholas Moseby failed to file a timely opposition to the Demurrer, which was due on February 17, 2026, which is nine (9) court days before the hearing of March 4, 2026. (Cal. Code of Civ. Proc. § 1005(b).

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>. Applied here, the Court finds that Defendant Moseby's failure to timely oppose the demurrer to his amended cross-complaint and failure to timely oppose the motion to strike is a deemed to be his consent to sustaining the demurrer and granting the motion to strike without leave to amend.

Ruling

1. Cross-Defendants' Jane Doe 1, Guardian Ad Litem of Jane Doe 1; Jane Doe 2; Parent of Jane Doe 2; Jane Doe 3, Guardian Ad litem of Jane Doe 3; Jane Doe 4 and Guardian Ad Litem of Jane Doe 4's ("Cross Defendants") unopposed Demurrer to Cross Complainant Nicholas Moseby's Amended Cross Complaint filed on November 3, 2025 is sustained without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
2. Cross Defendants unopposed Motion to Strike Portions of Cross-Complainant Nicholas Moseby's Amended Cross-Complaint filed on November 3, 2025 is granted without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
3. No appearance is required at the hearing on March 4, 2026.

8. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING:

See Line no. 7, above.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
***HEARING ON MOTION IN RE: QUASH OR ALTERNATIVELY MOTION FOR PROTECTIVE ORDER**
FILED BY: VAIL RESORTS MANAGEMENT COMPANY
TENTATIVE RULING:

Summary

Third Party Vail Resorts Management Company's Motion to Quash or in the alternative, Motion for Protective Order is granted as set forth herein.

Background

In this litigation, Plaintiff Julie Romanowski ("Plaintiff" or "Romanowski") alleges that Defendant Avi Eliahu ("Defendant" or "Eliahu") was recklessly skiing on December 24, 2022, while at Northstar California Ski Resort. Defendant collided with Plaintiff, causing her serious injuries, including shattering her pelvis, which resulted in a month stay at the hospital. The incident caused her to sustain significant damages.

On December 1, 2025, Romanowski served a Deposition Subpoena for Personal Appearance to the

“Person Most Qualified on behalf of non-party Vail Resorts Management Company” on ten separate topics, seeking a deposition on December 17, 2025 (the “Subpoena”). (Decl. 4, ¶Exh. A). The topics related primarily to the “Responsibility Code” that is posted on the website of the resorts affiliated with VRMC. Plaintiff claims that portions of the Responsibility Code have been codified in ordinances that were adopted by Placer County.

VRMC’s in-house counsel had previously engaged in meet-and-confer discussions with Romanowski’s counsel regarding a draft version of the Subpoena on November 20, 2025, but the parties were not able to reach agreement on the scope of the subpoena. (Penwarden Decl. ¶ 5, Exh. B).

On December 11, 2025, Vail Resorts Management Company (“VRMC”) filed Motion to Quash Deposition Subpoena for Personal Appearance by Persons Most Knowledgeable, or, in the alternative, a Motion for Protective Order. The Motion is supported by notice, Memorandum of Points and Authorities, and Declaration of Counsel Jill Hawley. Northstar is not a party to the litigation, nor is its operator, Trimont Land Company. VRMC, a Colorado corporation which is an affiliate of Trimont Land Company, similarly is not a party to this action. (Penwarden Decl. ¶ 2.) VRMC is not a party, does not own or operate Northstar, and has no connection to this action other than being a company affiliated with the resort owner. VRMC claims that Romanowski has served a subpoena on VRMC seeking “irrelevant and unduly burdensome testimony from a “Person Most Qualified” on ten separate topics pertaining to VRMC’s general “expectations” of skier conduct, and the reasons behind why certain information was included on Northstar’s website. (Penwarden Decl. ¶¶ 3, 4, Exh. A)”

On February 19, 2026, Plaintiff filed an opposition to the Motion, supported by a Memorandum of Points and Authorities and Declaration of Counsel Ravn Whittington. Plaintiff argues that the corporate distinction between Northstar, Trimont and VRMC is a distinction without as difference, as they share the same corporate officers. Moreover, the information sought is relevant as it is reasonably calculated to lead to the discovery of admissible evidence.

VRMC filed a reply brief on February 25, 2026 claiming that it is a third party not involved in this litigation. As such, any discovery arising out of the deposition would be irrelevant and admissible.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery

practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Cal. Code of Civ. Proc § 1987.1 allows a non-party to file a motion for "an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

Here, VRMC asserts that this Court's consideration of witness testimony or other evidence is limited in primary assumption of risk cases, because it is the Court's responsibility to determine the legal questions of what the inherent risks of the sport or activity are, and whether the defendant breached a duty to plaintiff by increasing those risks. (*Towns v. Davidson* (2007) 147 Cal. App. 4th 461, 472-473). Because the deposition subpoena seeks testimony from a non-party about the assumption of risk, it is not likely to lead to the discovery of admissible evidence. The Court agrees with this general assessment.

VRMC contends that "The nature and risks of downhill skiing are commonly understood" and "the demarcation of any duty owed is judicially defined." (Id. at p. 473). This is an objective inquiry; a party's expectations or subjective appreciation of the risks involved in their activity is neither relevant nor admissible. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 315-316; *Swigart v. Bruno* (2017) 13 Cal.App.5th 529, 538; *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1573; *Bushnell v. Japanese-Am. Religious & Cultural Ctr.* (1996) 43 Cal.App.4th 525, 534).

Applied here, the testimony Plaintiff seeks from VRMC has little relevance to the Court's determination of this question of law. What non-party VRMC may have "expected" a skier to do, or the "reasons" behind why it posted or linked to certain information on a website, are not expected to provide discoverable evidence that define the inherent risks of skiing, or what Defendant's duty was to plaintiff, or whether Defendant breached that duty. Those are legal questions and not the appropriate topic of discovery for a non-party. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063; *Towns, supra*, 147 Cal. App. 4th 461; *Lackner v. North* (2006) 135 Cal.App.4th 1188; *Mastro v. Petrick* (2001) 93 Cal.App.4th 83). As such, the Court finds that any deposition that seeks this information from VRMC as set forth in Plaintiff's subpoena is not likely to lead to the discovery of admissible evidence. As such, the Court finds that it is appropriate under Section 1987.1 to quash this subpoena duces tecum and deposition notice.

Ruling

VRMC's Motion to Quash is **granted** without prejudice. Plaintiff's Subpoena to VRMC is quashed and VRMC, as a non-party, has no obligation to comply with the deposition subpoena serve by Plaintiff.

VRMC shall prepare and e-file a proposed order conforming to this ruling and attach a copy of the Court's tentative ruling.

10. 9:00 AM CASE NUMBER: C25-00714
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN
HEARING IN RE: PLAINTIFF'S DEMURRER TO CROSS-COMPLAINT
FILED BY: DRAGOLOVICH, PETER L
TENTATIVE RULING:

By stipulation of the Parties and Counsel, this hearing is continued to September 24, 2026. No appearance is required on March 4, 2026.

11. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC's demurrer to the first amended complaint is **continued to April 15, 2026**. No appearance is required at the March 4, 2026 hearing.

Defendants included a declaration claiming that they met the meet and confer requirements for a demurrer. Defendants' attorney sent an e-mail to Plaintiff's attorney regarding the initial complaint. Plaintiff's attorney responded, agreeing to make some changes. Plaintiff's counsel then filed a FAC without providing Defendant's attorney a draft in advance. Defendants' attorney states that FAC did not cure all the claim deficiencies in the complaint. Defendants' attorney then concludes "I took the filing of the First Amended Complaint in this form to indicate voluntarily resolution as to the outstanding deficiencies could not reasonably be reached and demurrer was appropriate. In light of this course of correspondence, I believe Defendants meet-and-confer obligations under CCP §430.41 have been met." (Garrett dec. ¶13.)

Before every demurrer is filed, the moving party must engage in a meet and confer with the opposing party in person, by telephone or by video conference. (Code of Civil Procedure section 430.41.) There is no indication that the parties met in person, by telephone or by video conference regarding the original complaint. Further, Defendants were required to engage in a new meet and confer process after the FAC was filed. Defendants did not comply with the meet and confer requirements. This matter is being continued to allow the parties time to properly meet and confer in person, by telephone or by video conference.

In addition, both the moving and opposing memoranda violated the Rules of Court. Defendants filed a 15-page brief without the required tables. (California Rules of Court, rule 3.1113(f).) Plaintiff filed an 18-page brief, which is beyond the 15-page limit. (California Rules of Court, rule 3.1113(d).) This matter is also being continued to allow the parties to comply with the Rules of Court.

The Court sets the following schedule:

1. The parties must engage in a meet and confer regarding the FAC in person, by telephone or by video conference no later than March 18.
2. Defendants shall file and serve a declaration showing that the meet and confer occurred and addressing whether the parties' reached agreement on any of the issues no later than March 25.
3. Defendants shall file and serve an amended moving brief that includes the required table of contents and authorities by March 25.
4. Plaintiffs shall file and serve an amended opposition that is limited to 15 pages by March 25. Plaintiffs shall limit their amendments to shortening their arguments and shall not include new arguments in their brief.

12. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: QUASH DEFENDANT CHEVRON U.S.A.'S NOTICE OF SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY**

FILED BY: RITZ, DR. BEATE

TENTATIVE RULING:

On February 19, 2026, Defendant Chevron U.S.A. Inc. withdrew the subject and filed a Notice of Withdraw of Subpoena with the court. This hearing is **vacated**. The case management conference scheduled for March 5, 2026 is confirmed. No appearance is required at the hearing on March 4, 2026.

13. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION FILED BY DEFENDANTS RM 15 SAFE CORP (RM 15) AND SAN RAMON HANNIBAL, LLC

FILED BY:

TENTATIVE RULING:

The Court continues the hearing on this motion to March 18, 2026 at 9:00 a.m., to be heard along with Plaintiffs' motion for summary judgment, or in the alternative, summary adjudication. No appearance is required at the March 4, 2026 hearing.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, AS HEIR AND SII TO ALEX POLLARD, AND FOR MONETARY SANCTIONS**

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

This tentative ruling applies to lines 14, and 16 which are the two discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on March 4, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety. No appearance is required on March 4, 2026.

Background

Defendant filed the following discovery motions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95.

These two motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each by e-mail to Plaintiff's Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is February 17, 2026. No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United*

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.];

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff's failure to timely oppose Defendant's Motions is deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees. The Court will execute the proposed order lodged on September 16, 2025.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95. The Court will execute the proposed order lodged on November 17, 2025.
3. Sanctions shall be paid no later than ten (10) days from the date of the hearing.

15. 9:01 AM CASE NUMBER: C25-00221

CASE NAME: GRAVES CONSTRUCTION GROUP SERVICES, INC. VS. ELITE MD, INC., A CALIFORNIA CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL ELITE MD, INC. FURTHER RESPONSES TO SPECIAL INTERROGATORIES. SET ONE**

FILED BY: GRAVES CONSTRUCTION GROUP SERVICES, INC.

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is **moot**, as set forth herein. Plaintiff's request for sanctions are **granted**.

Background

This case involves a claim by Plaintiff for breach of contract regarding certain tenant improvements.

Plaintiff and Cross-Defendant Graves Construction Group Services, Inc. ("Plaintiff") alleges that it entered into a contract to perform certain improvements to Defendants and Cross-complainants Elite MD, Inc, Sonia Bansal and Vivek Bansal's ("Defendants") place of business located at 4185 Blackhawk Plaza, Danville CA. Plaintiff claims that Defendants breached their contract as set forth in the complaint filed on January 24, 2025.

On August 6, 2025, Plaintiff served Special Interrogatories to Defendants, which were due September 5, 2025. Plaintiff granted an extension to September 23, 2025. No responses were provided. On September 29, 2025, Plaintiff's counsel "met and conferred" with Defendants' counsel, who agreed to serve responses no later than October 3, 2025. Plaintiff claims that the responses were evasive, incomplete and not code compliant.

On November 7, 2025, Plaintiff filed a Motion to Defendant Elite MD, Inc's Further Responses to Special Interrogatories, Set One and Request for Sanctions in the amount of \$4,714.50. The Motion was supported by a Memorandum of Points and Authorities, Separate Statement, Declaration of Counsel Thomas Padian. Plaintiffs make this motion pursuant to Cal. Code of Civ. Proc. §§ 2030.300, 2030.210, 20230.220(a) and 2023.030.

On December 1, 2025, Defendants filed an opposition to the motion, claiming, essentially, that they have served supplemental responses that render this motion and the request for sanctions moot. The Motion asserts that Plaintiff served over 98 special interrogatories, which necessitated additional time. Defendants also claim that Plaintiffs did not provide any courtesies and extensions requested by Defendants' counsel.

A review of the 111 page separate statement shows that Plaintiffs provided identical responses to each of the special interrogatories, Nos. 1- 91: "Responding Party contends that this Interrogatory is premature, as Responding Party has not completed its investigation or discovery in this matter. Responding Party has not yet completed its examination of the damages caused by Plaintiff and its subcontractors; ongoing work is continuing and discovery is continuing. Responding Party reserves the right to supplement its response." Following the filing of this Motion, Defendants provided "Supplemental Responses" on November 26, 2025. A review of Defendants' separate statement demonstrates that the supplemental answers provide missing information.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or

intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Under Section 2030.300(d): The court shall impose a monetary sanction ...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

Applied here, the Court finds that Defendants' initial "boilerplate" answers are akin to "boilerplate objections" which fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making boilerplate responses, then refusing to provide further answers until a motion to compel required compliance. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Although Defendants filed supplemental answers, they did so 19 days after Plaintiff's motion was filed. Such action is conducted by Defendant's counsel without substantial justification. Cal. Rules of Court Rule 3.1348 permits this Court to award sanctions against Defendants where "the requested

discovery was provided to the moving party after the motion was filed.” Accordingly, the Court finds that there is good cause in granting this motion.

Ruling

1. Plaintiff’s Motion to Compel Further Responses to Special Interrogatories, Set One, is **moot**.
2. Plaintiff’s Motion for Sanctions are **granted**. Sanctions in the amount of \$4,714.50 are awarded to Plaintiffs by Defendants and shall be paid within thirty (30) days from the date of this order.
3. Plaintiff shall prepare and e-file a proposed order that conforms to this ruling and shall file it within five (5) days from the date of this hearing.

16. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY ORDER DEEMING ADMITTED TRUTH OF FACTS AS TO PLAINTIFF**

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

See Line 14, above.